

Ashraf Ali v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 February 2023 · Writ-C No. 38724 of 2022 · Writ-C No. 38724 of 2022 · **Writ disposed on consent; connection directed on Rs. 35,000 deposit plus Clause 6.14 installments.**

HEADNOTE

On consent, the Allahabad High Court disposed of a writ seeking a new electricity connection at premises carrying outstanding dues of Rs. 1,16,255. The Electricity Department had invoked Clause 4.3 of the U.P. Electricity Supply Code, 2005 as a bar until those dues were cleared. Directing a bona fide deposit of Rs. 35,000 within two weeks, the Court ordered the respondents to provide the new connection and thereafter to fix easy installments under Clause 6.14.

FACTUAL SUMMARY

Ashraf Ali sought a new electricity connection at House No. B-1105, G.T.B. Nagar, Kareli, Prayagraj. The Electricity Department submitted that outstanding dues of Rs. 1,16,255 stood against the plot and that Clause 4.3 of the U.P. Electricity Supply Code, 2005 barred a new connection until those dues were cleared. The petitioner offered to pay in easy installments under Clause 6.14. Department counsel did not object: the Department wanted the entire dues realized, and a bona fide part-deposit would remove any hassle in granting the connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

new-connection-on-part-deposit-and-installments

HOLDING

Where outstanding plot dues of Rs. 1,16,255 were cited under Clause 4.3 as a bar to a new connection, and the licensee did not object to realization through a bona fide part-deposit and Clause 6.14 installments, the Court on consent directed that if the consumer deposits Rs. 35,000 within two weeks the respondents shall provide a new electricity connection and thereafter fix easy installments under Clause 6.14. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 After a directed bona fide deposit of Rs. 35,000 toward outstanding dues of Rs. 1,16,255, the Court on consent ordered the remaining amount to be recovered by easy installments fixed under Clause 6.14, with the new connection to be released on that deposit. ¶ 1

clause-4.3-new-connection-barred-by-outstanding-premises-dues The licensee invoked Clause 4.3 as a bar to a new connection while Rs. 1,16,255 remained outstanding on the plot. The Court did not construe or displace that bar; on consent it directed connection upon a part-deposit of Rs. 35,000 with the balance under Clause 6.14. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.3 BARS A NEW CONNECTION UNTIL OUTSTANDING PREMISES DUES ARE CLEARED IN FULL

The bar was invoked by the licensee but the writ was disposed on consent upon a part-deposit of Rs. 35,000 and Clause 6.14 installments, without a merits construction of Clause 4.3. ¶ 1

